

# Naseem Akhtar v. Abhinav Tiwari, Executive Engineer, Purvanchal Vidyut Vitran Khand

High Court of Judicature at Allahabad · Single Judge (Court No. 7) · 21 April 2023 · Contempt Application (Civil) No. 1651 of 2023 · **Contempt disposed; three months more to decide the 6.8 objection.**

## HEADNOTE

A contempt alleging disobedience of a writ direction to decide an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 was disposed of without notice. The Court found a prima facie case of willful disobedience, granted the Executive Engineer three further months from production of a certified copy to comply, and left the applicant liberty to approach again if the direction remained unfulfilled.

## FACTUAL SUMMARY

The applicant, Naseem Akhtar, had earlier filed Writ-C No. 4141 of 2022. By an order dated 20 May 2022 this Court directed the opposite party, the Executive Engineer, Purvanchal Vidyut Vitran Khand, to decide Akhtar's objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks of service. That order was served by registered post on 14 July 2022. Akhtar thereafter filed this contempt application, stating that the direction had not been complied with.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

further time to decide a clause 6.8 objection in contempt

### HOLDING

Where a writ had directed the Executive Engineer to decide the consumer's objection under para 6.8 within four weeks and that direction remained uncomplied with after service, the contempt court found a prima facie case of willful disobedience, issued no notice, granted three further months from production of a certified copy of this order to comply, and disposed of the contempt at this stage with liberty to the applicant to approach again if the direction was still not carried out. ¶ 3-9

## PRINCIPLE TAGS

**6.8-procedure-mandatory** The Court did not construe para 6.8. It treated as binding, and extended time to obey, an earlier writ direction that the Executive Engineer decide the consumer's objection under that paragraph, without itself deciding the objection. ¶ 3-8

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — THE MERITS OF THE APPLICANT'S OBJECTION UNDER PARA 6.8 WERE NOT EXAMINED.**

¶ 5-8

**NOT DECIDED — WILLFUL DISOBEDIENCE WAS RECORDED ONLY AS PRIMA FACIE; NO PUNISHMENT WAS IMPOSED, AND REVIVAL WAS LEFT OPEN IF THE WRIT DIRECTION REMAINED UNCOMPLIED WITH.**

¶ 4-8